

On September 5, 2025, Defendant filed a motion to set aside default judgment stating that he will suffer irreparable harm if default is entered against him given the alleged service defects and having the ability to litigate the case on the merits. (Defendant’s motion, p. 5). Conversely, Defendant asserts that the plaintiff will not suffer prejudice and it will be in the same position prior to the entry of default. (*Id.*). Defendant also asserts that the motion was filed within the required timeframe. (*Id.*).

The motion is unopposed. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

An entry of default was entered by the court clerk on June 9, 2025. Eighty-eight days later on September 5, 2025, Defendant filed a motion to set aside the basic entry of default. Thus, the Court finds that the motion was timely Pursuant to Code of Civil Procedure section 473(b). Given the policy preferring that matters be litigated on the merits, the Court will grant the motion.

IV. CONCLUSION

Based on the foregoing, and the motion being unopposed, Defendant’s motion to VACATE the basic entry of default entered by the clerk on June 9, 2025 is GRANTED. The Defendant is to file an Answer within 30 days of this hearing date.

The Court will prepare the formal Order.

Calendar Lines # 7
Case Name Wilder Culma vs Amritpal Singh et al
Case No. 25CV466573

Motion to Quash Subpoena for Production of Business Records

I. BACKGROUND

This personal injury case arises from an August 5, 2024 motor-vehicle incident involving a Santa Clara Valley Transportation Authority (“VTA”) bus that struck the back of a vehicle that Plaintiff Wilder Oyola Culma (“Plaintiff Culma”) was driving in San Jose, California. (“Complaint”). Plaintiff Culma filed a Complaint on May 22, 2025, alleging negligence and seeking general and special damages, wage and loss of earning capacity, cost of suit, and interest on damages. (*Id.*).

On April 22, 2026, Defendant VTA served three deposition subpoenas for production of business records seeking the custodian of records of the Regional Medical Center (“RMC”) of San Jose. The subpoenas are summarized as follows: (1) RMC, located at 225 North Jackson Avenue, San Jose, CA 95116. Scope of records limited to: 01/01/2020 to present only. All documents and records stored in any format or method including, but not limited to, all medical records, intake forms, patient completed forms and/or documents, correspondence, all office records, emergency room records or reports, inpatient and outpatient charts and records, lien files, SOAP notes, pathology records and reports, lab reports, pharmacy and prescription records, physical therapy records, sign-in sheets, all descriptions of exercises prescribed, documentation which indicate date and time of patient's appointments, insurance documents, all radiology reports and readings, and any other documents maintained pertaining to the care, treatment and examination of the patient.” (Plaintiff’s Motion p. 6-7; Exhibit A to Declaration of Jimenez);

(2) RMC, located at 225 North Jackson Avenue, San Jose, CA 95116. Scope of records limited to: 01/01/2020 to present only COPIES of all original x-rays films, CT scans, MRIs and any other scans or images taken and/or maintained, including a comprehensive list of all dates and body parts of all films, CT scans, MRIs and all other images or scans provided. All images and films must be provided on CD if available.” (*Id.*); (3) RMC San Jose Billing, located at 330 North Brand Boulevard, St. 700, Glendale, CA 91203.

Scope of records limited to: 08/05/2024 to present only. Including, but not limited to, any and all billing records of treatment rendered at: Regional Medical Center, San Jose, 225 North Jackson Avenue, San Jose, California 95116 1603. All itemized statements of the billing charges and/or consolidated statement of benefits, with diagnostic and procedure codes including all CPT and ICD-9/ICD-10 coding and all HCFA, UB04 and UB92 bills, to include the total charges private or governmental; any amounts written off by the provider, and any amounts that are the patient's responsibility and explanation of benefits, payment history, records of any liens, any insurance billing or payments information, *emergency room physicians bills and *radiology billing from all sources, to include any computer generated billing or billing stored in any format and payment software that contains said information. *Please note: If Emergency Room (ER) physician billing and/or Radiology billing is maintained by a separate department or third-party billing entity, you are requested to provide the full name, address, phone number, email address, and any additional contact information necessary to facilitate a records request.” (*Id.*, at p. 8; Exhibit A).

On May 14, 2026, Plaintiff Wilder Oyola Culma (“Plaintiff Culma”) filed a motion to quash three separate subpoenas for production of business records directed to the custodian of records of the Reginal Medical Center in San Jose on the grounds that the subpoenas are overbroad, lack probative value, not reasonably calculated to the discovery of admissible evidence; and plaintiff’s privacy rights outweigh any compelling state interest. (Plaintiff’s motion, at p. 2). The motion was accompanied by a proof of service indicating mail service for that same day.

Defendant VTA opposes the motion and filed an opposition on June 2, 2026. Defendant VTA asserts that the accident occurred when the plaintiff abruptly entered the lane in which the VTA bus was traveling and caused the left front side of the bus to make contact with the right rear of the sedan in a low-speed collision. (Defendant’s Opposition, p. 2).

Plaintiff filed a reply brief on June 9, 2026.

The Court carefully reviewed the following: Plaintiff’s notice motion, memorandum of points and authorities in support of the motion, Declaration of Jonathan Jiminez in support of the motion and attached Exhibits A-C; proposed Order; Defendant’s Opposition (totaling 6 pages); Declaration of Paige Yeh in support of the opposition and Exhibits A-C (totaling 51 pages); Notice of Unavailability of Defense counsel (totaling 3 pages)²²; Plaintiff’s Reply brief (totaling 7 pages); (totaling 102 pages); Separate Statement (totaling 38 pages); Notice of non-receipt of opposition (totaling 4 pages); proof of services; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 2017.010, “any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action. . . , if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.”

Code of Civil Procedure section 2020.220(c) provides that:

²² On June 2, 2026, Defense Counsel filed a Notice of Unavailability of defense counsel from June 26, 2026 to July 10, 2026. The Court notes that these dates conflict with when the moving papers, opposition, and reply briefs were filed or the date of the hearing set for June 19, 2026, and is therefore moot at this point.

“(c) Personal service of any deposition subpoena is effective to require all of the following of any deponent who is a resident of California at the time of service

- (1) Personal attendance and testimony, if the subpoena so specifies.
- (2) Any specified production, inspection, testing and sampling....”

Code of Civil Procedure section 1987.1, provides in pertinent part:

“(a) If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.”

Under subdivision (b), the persons who may make a motion under subdivision (a) includes, “(1) A party.” With respect to limiting discovery, the burden is generally on the moving party to establish good cause for the relief requested. (*Emerson Electric Co. v. Superior Court* (1997) 16 Cal.4th 1101, 1110; *Meritplan Insurance Co. v. Superior Court* (1981, 2nd Dist.) 124 Cal.App.3d 237, 242).

III. ANALYSIS

Plaintiff seeks to quash the three deposition subpoenas for production of business records as overbroad as it pertains to Plaintiff’s medical, radiology, billing, pharmacy, insurance and other medical records from January 1, 2020 through the present. (Declaration of Jimenez; Exhibit A). Plaintiff avers that “any and all” records extends far beyond the scope of information reasonably relevant to the injuries claimed by the plaintiff in this action. (Plaintiff’s motion, at p. 5). Plaintiff attempted to resolve the discovery dispute informally and offered to limit the timeframe of the subpoena to five-years and limit the scope of the topic to body parts reasonably related to injuries alleged in the incident. (*Id.*; Declaration of Jimenez, at p. 12; Exhibit B-C).

Defendant SCVTA agreed to limit the scope as to time to a five year period. (Declaration of Jimenez, at p. 12). However, defense requested the scope as to topic include, “issues that could cause or contribute to the alleged injuries: osteoarthritis, rheumatoid arthritis, gout, Complex Regional Pain Syndrome (CRPS), Reflex Sympathetic Dystrophy (RSD), anxiety/depression, neurological issues muscle weakness, obesity, feet issues, hip issues, joint pain, vertigo, dehydration, and hearing issues.” (*Id.*; Exhibit C).

Plaintiff asserts that the records sought are also protected by consumer rights under section 1985.3(g) and 198731. (Plaintiff’s motion, at p. 6). Plaintiff also challenges the scope of the subpoena on the grounds that any compelling state need is outweighed by the plaintiff’s right to privacy under the California Constitution, article I, section 1. (*Id.*, at p. 9). Plaintiff seeks to quash all three subpoenas as overbroad and improperly infringing on the plaintiff’s right to privacy. (*Id.*, at p. 11). In the alternative, the plaintiff seeks an order from the court to narrow the scope.

Defendant argues that its discovery is not overbroad and tailored to respond to assess plaintiff’s claimed injuries. In the plaintiff’s verified form interrogatories served on December 17, 2025, the plaintiff claims injuries arising from the incident to include: traumatic brain injuries, bilateral shoulders, mid/lower back, neck, bilateral elbows, hips and left knee. (Defendant’s Opposition, p. 2.). Plaintiff also claimed to have ongoing pain to his left shoulder, right elbow, left knee, neck, lower back, headaches, dizziness, and tinnitus. (*Id.*). Plaintiff denied having any such injuries at any time prior to the incident, and that he did not have any physical, mental or emotional disabilities immediately prior to the incident. (*Id.*). Defendant VTA asserts that its subpoenas sought records from January 1,

2020 through the present and billing records from the date of the August 5, 2024 incident through the present. (*Id.*; Declaration of Yeh, at p. 2). Defendant asserts that the plaintiff seeks economic and non-economic damages and that under section 996 has waived privilege as to issues concerning the condition of the patient if the issues have been tendered by the patient. (Defendant's Opposition, at p. 4). Defendant asserts that the information is limited, narrowly tailored to five years preceding the subject incident, and relevant to assess any current or medical conditions related to the claim. Defendant reiterates it will limit the scope of the medical subjects to the alleged areas of injuries (i.e., neck, low back, elbows, knees, head), as well as issues that could contribute to the alleged injuries (i.e., osteoarthritis, rheumatoid arthritis, gout, Complex Regional Pain Syndrome (CRPS), Reflex Sympathetic Dystrophy (RSD), anxiety/depression, neurological issues, muscle weakness, obesity, feet issues, hip issues, joint pain, vertigo, dehydration, and hearing issues). (Declaration of Yeh, at p. 2). Defendant asserts that each of the issues is reasonably related to plaintiff's injuries and allows VTA to evaluate the claim. (Defendant's Opposition, at p. 5.).

In plaintiff's reply brief, the plaintiff seeks to exclude records concerning unrelated medication conditions, including but not limited to anxiety, depression, obesity, dehydration, feet issues, unrelated systematic disease, primacy care records, reproductive and sexual health, and unrelated infectious disease records. (Plaintiff's reply, p. 5).

The Court finds that the scope of time is not at issue as parties agree that five years before the August 5, 2024 incident to the present. The Court finds that the plaintiff seeks a broad scope of medical issues and per the Complaint seeks economic and noneconomic damages that may allege emotional distress. The Complaint and parties did not raise issues regarding a loss of consortium. The Court limits the scope of the topic to the neck, lower back, bilateral elbows, bilateral knees, head, as well as issues that could contribute to the alleged injuries i.e., osteoarthritis, rheumatoid arthritis, gout, Complex Regional Pain Syndrome (CRPS), Reflex Sympathetic Dystrophy (RSD), anxiety/depression, neurological issues, muscle weakness, obesity, feet issues, hip issues, joint pain, vertigo, dehydration, and hearing issues. The Court agrees that no issues of reproductive and sexual health is related and should be excluded.

IV. CONCLUSION

Based on the foregoing, and the plaintiff's motion to quash the three subpoenas is DENIED.

The scope is limited as follows: five years before the August 5, 2024 incident to the present.

The Court limits the scope of the topic to the neck, mid/lower back, bilateral elbows, left knee, head, as well as issues that could contribute to the alleged injuries i.e., osteoarthritis, rheumatoid arthritis, gout, Complex Regional Pain Syndrome (CRPS), Reflex Sympathetic Dystrophy (RSD), anxiety/depression, neurological issues, muscle weakness, obesity, feet issues, hip issues, joint pain, vertigo, dehydration, and hearing issues. The Court agrees that no issues of reproductive and sexual health is related and should be excluded.

The Court will prepare the formal Order.